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Key Metadata

Contribution-Based Social Security Act, 2074 (2017)

Law Information

Nepali Title	योगदानमा आधारित सामाजिक सुरक्षा ऐन, २०७४
English Title	Contribution-Based Social Security Act, 2074 (2017)
Act Number	Act No. 15 of 2074 (2017 AD)
Certification Date	2074.10.20 BS (January 4, 2018 AD)
Commencement Date	2074.10.20 BS
Total Sections	102
Total Chapters	16
Primary Regulator	Social Security Fund (SSF)
Scope	Comprehensive social security framework for workers in organised sector including medical, accident, disability, dependent family, and old age protection schemes

Summary

The Contribution-Based Social Security Act, 2074 (2017) establishes Nepal's first comprehensive contribution-based social security system for workers in the organised sector. Enacted on January 4, 2018, this landmark legislation creates the Social Security Fund (SSF) as an autonomous body responsible for administering multiple social security schemes. The Act mandates registration of all employers and workers, with contributions calculated as a percentage of monthly basic remuneration — shared between employers and employees. The Act establishes five core social security schemes: (1) Medical Treatment, Health and Maternity Protection Scheme providing healthcare and maternity benefits; (2) Accident and Disability Protection Scheme covering workplace and non-workplace accidents; (3) Dependent Family Protection Scheme providing benefits to surviving family members; (4) Old Age Protection Scheme ensuring retirement pensions; and (5) an unemployment support framework. The legislation specifies detailed procedures for contribution collection, benefit claims, exemption provisions, inspection and enforcement mechanisms, and penalties for non-compliance. It represents a paradigm shift from employer-liability-based social protection to a contributory social insurance model, bringing Nepal's labour protection framework in line with international standards and ILO conventions.

Preamble

Whereas it is expedient to make legal provisions relating to a contribution-based social security system for the protection and social security of workers;

Be it enacted by the Legislature-Parliament in the first year of its reign.

Chapter 1: Preliminary

Section 1: Short Title and Commencement

(1) This Act may be cited as the "Contribution-Based Social Security Act, 2074 (2017)".

(2) This Act shall come into force immediately.

Section 2: Definitions

In this Act, unless the subject or context otherwise requires:

- (a) "**Social security**" means the protection and social security to be provided to a worker and his/her dependent family members under this Act.
- (b) "**Fund**" means the Social Security Fund established under Section 3.
- (c) "**Contribution**" means the amount to be deposited by the worker and employer in the Fund under this Act.
- (d) "**Worker**" means a person employed in an organisation or establishment with remuneration, and this term includes a home-based worker.
- (e) "**Employer**" means the owner of an organisation or establishment or a person designated by such owner for the management of such organisation or establishment.
- (f) "**Organisation or establishment**" means any industry, company, firm, association, or other organisation or establishment employing workers, which is registered under the prevailing law.
- (g) "**Basic remuneration**" means the basic salary or wage as mentioned in the appointment letter or agreement between the employer and worker, and this term does not include allowances.
- (h) "**Social security scheme**" means the scheme formulated by the Fund for the provision of social security under this Act.

(i) **"Benefit"** means the amount or facility to be provided to a worker or his/her dependent family member under the social security scheme.

(j) **"Dependent family member"** means the husband, wife, son, daughter, father, mother, father-in-law, and mother-in-law whom the worker maintains.

(k) **"Medical institution"** means a hospital, health centre, clinic, or other medical institution recognised by the Government of Nepal.

(l) **"Prescribed"** or **"as prescribed"** means prescribed or as prescribed in the Rules made under this Act.

Section 3: Application of the Act

(1) This Act shall apply to workers employed in organisations or establishments registered under the prevailing law.

(2) The Government of Nepal may, by notification in the Nepal Gazette, gradually extend the application of this Act to workers in the unorganised sector and self-employed persons.

Chapter 2: Provisions Relating to Social Security Fund

Section 4: Establishment of Social Security Fund

(1) A Social Security Fund shall be established for the implementation of a contribution-based social security scheme.

(2) The Fund shall be an autonomous body corporate with perpetual succession.

(3) The Fund shall have a separate seal of its own for all of its affairs.

(4) The Fund may, like an individual, acquire, use, sell, dispose of, or otherwise deal with movable and immovable property.

(5) The Fund may sue and be sued in its own name.

Section 5: Head Office and Branch Offices

(1) The head office of the Fund shall be in Kathmandu.

(2) The Fund may establish branch offices in other places as necessary.

Section 6: Objectives of the Fund

The objectives of the Fund shall be as follows:

- (a) To implement contribution-based social security schemes for workers;
- (b) To ensure social protection of workers and their dependent family members;
- (c) To reduce poverty and vulnerability of workers through social security;
- (d) To promote productivity and decent work by providing social security;
- (e) To manage and operate the Fund in a sustainable manner.

Section 7: Functions, Duties and Powers of the Fund

The functions, duties, and powers of the Fund shall be as follows:

- (a) To formulate and implement social security schemes;
- (b) To register employers and workers;
- (c) To collect and manage contributions;
- (d) To invest the amounts deposited in the Fund;
- (e) To make payment of benefits under social security schemes;
- (f) To enter into agreements with medical institutions and other service providers;
- (g) To maintain records and provide information;
- (h) To conduct public awareness programmes;
- (i) To conduct research and studies on social security;
- (j) To coordinate and cooperate with domestic and international institutions;
- (k) To perform such other functions as prescribed.

Section 8: Board of Directors

(1) There shall be a Board of Directors of the Fund for the management and operation of the Fund.

(2) The composition of the Board shall be as follows:

- (a) The Minister for Labour and Employment — Chairperson;
- (b) The Secretary at the Ministry of Labour and Employment — Member;
- (c) The Secretary at the Ministry of Finance — Member;
- (d) The Secretary at the Ministry of Health and Population — Member;
- (e) Two representatives from employers' organisations nominated by the Government of Nepal — Member;
- (f) Two representatives from workers' organisations nominated by the Government of Nepal — Member;
- (g) The Executive Director of the Fund — Member-Secretary.

Section 9: Meetings of the Board

- (1) The meetings of the Board shall be held as prescribed.
- (2) The quorum for a meeting of the Board shall be a majority of the total number of members.
- (3) The decisions of the Board shall be made by a majority of the members present at the meeting.
- (4) In case of a tie, the Chairperson shall exercise a casting vote.
- (5) The procedures relating to meetings of the Board shall be as prescribed.

Section 10: Executive Director

- (1) There shall be an Executive Director of the Fund.
- (2) The Executive Director shall be appointed by the Board on the recommendation of a selection committee.
- (3) The qualifications, tenure of office, remuneration, and other conditions of service of the Executive Director shall be as prescribed.
- (4) The Executive Director shall be the chief executive officer of the Fund and shall perform the following functions:
 - (a) To implement the decisions of the Board;
 - (b) To manage and operate the day-to-day affairs of the Fund;
 - (c) To appoint staff of the Fund as necessary;

- (d) To represent the Fund in domestic and international forums;
- (e) To perform such other functions as delegated by the Board.

Section 11: Employees of the Fund

- (1) The Fund shall have such employees as necessary for the performance of its functions.
- (2) The appointment, remuneration, and conditions of service of employees under Sub-section (1) shall be as prescribed.

Section 12: Fund of the Social Security Fund

The Fund shall have the following sources of fund:

- (a) Contributions deposited by workers and employers;
- (b) Amount received from the Government of Nepal;
- (c) Income from investment of the Fund;
- (d) Amount received as donations, grants, or assistance from domestic or foreign persons or institutions;
- (e) Amount received as fines under this Act; and
- (f) Other amounts as prescribed.

Section 13: Investment of Fund

- (1) The Fund may invest the amounts collected in the Fund in the following areas:
 - (a) Government securities;
 - (b) Fixed deposits in banks and financial institutions;
 - (c) Shares and debentures of public companies;
 - (d) Infrastructure development projects; and
 - (e) Other areas as prescribed.
- (2) The investment policy of the Fund shall be as approved by the Board.

Section 14: Accounts and Audit

- (1) The accounts of the Fund shall be maintained in accordance with the prevailing law.
- (2) The audit of the Fund shall be conducted by the Auditor General or an auditor designated by the Auditor General.
- (3) The audited financial statements of the Fund shall be published annually.

Chapter 3: Provisions Relating to Registration and Contribution

Section 15: Registration of Employer

- (1) Every employer shall register the organisation or establishment with the Fund within the prescribed time.
- (2) An employer shall, at the time of registration under Sub-section (1), submit the prescribed particulars and documents.
- (3) The Fund shall, upon registration under Sub-section (1), provide the employer with a registration certificate.

Section 16: Registration of Worker

- (1) Every employer shall register all workers employed in the organisation or establishment with the Fund.
- (2) A worker shall, at the time of registration under Sub-section (1), submit the prescribed particulars and documents.
- (3) The Fund shall, upon registration under Sub-section (1), provide the worker with a social security number.

Section 17: Social Security Number

- (1) Every worker registered under Section 16 shall be provided with a unique social security number.
- (2) The social security number shall be permanent and shall not be changed.
- (3) The social security number shall be used in all matters relating to social security under this Act.

Section 18: Base for Contribution

- (1) The contribution under this Act shall be calculated on the basis of the basic remuneration of the worker.
- (2) Where a worker receives remuneration in kind in addition to cash remuneration, the value of such remuneration in kind shall be included in the basic remuneration as prescribed.

Section 19: Rate of Contribution

- (1) The contribution shall be deposited at the following rates:
 - (a) By the employer: an amount equal to twenty percent of the basic remuneration of the worker;
 - (b) By the worker: an amount equal to eleven percent of the basic remuneration of the worker.
- (2) Notwithstanding anything contained in Sub-section (1), the Government of Nepal may, by notification in the Nepal Gazette, amend the rates of contribution.

Section 20: Time Limit for Deposit of Contribution

- (1) The employer shall deposit the contribution in the Fund within the prescribed time limit.
- (2) The employer shall, while depositing the contribution under Sub-section (1), deposit both the employer's contribution and the worker's contribution.
- (3) The employer may deduct the worker's contribution from the worker's remuneration.

Section 21: Maintenance of Records

- (1) The employer shall maintain records of contributions deposited in the Fund.
- (2) The employer shall provide the worker with a statement of contributions deposited.

Chapter 4: Provisions Relating to Social Security Schemes

Section 22: Formulation of Social Security Schemes

- (1) The Fund shall formulate social security schemes for the implementation of this Act.
- (2) The social security schemes formulated under Sub-section (1) shall be approved by the Board.

(3) The social security schemes shall include the following:

- (a) Medical treatment, health and maternity protection scheme;
- (b) Accident and disability protection scheme;
- (c) Dependent family protection scheme;
- (d) Old age protection scheme.

Section 23: Medical Treatment, Health and Maternity Protection Scheme

(1) The Fund shall formulate a medical treatment, health and maternity protection scheme for the provision of medical treatment, health services, and maternity protection to workers and their dependent family members.

(2) The scheme under Sub-section (1) shall include the following:

- (a) Outpatient and inpatient medical treatment services;
- (b) Medicine and medical supplies;
- (c) Laboratory and diagnostic services;
- (d) Maternity health services;
- (e) Preventive health services;
- (f) Other health services as prescribed.

Section 24: Accident and Disability Protection Scheme

(1) The Fund shall formulate an accident and disability protection scheme for the provision of benefits to workers who suffer accidents or become disabled.

(2) The scheme under Sub-section (1) shall include the following:

- (a) Medical treatment for accidents;
- (b) Cash benefits during treatment period;
- (c) Disability allowance for partial or total disability;
- (d) Rehabilitation services;

- (e) Other benefits as prescribed.

Section 25: Dependent Family Protection Scheme

- (1) The Fund shall formulate a dependent family protection scheme for the provision of benefits to the dependent family members of a worker who dies.
- (2) The scheme under Sub-section (1) shall include the following:
 - (a) Funeral expenses;
 - (b) Monthly survivor's pension;
 - (c) Lump sum payment as prescribed;
 - (d) Educational support for children;
 - (e) Other benefits as prescribed.

Section 26: Old Age Protection Scheme

- (1) The Fund shall formulate an old age protection scheme for the provision of retirement benefits to workers.
- (2) The scheme under Sub-section (1) shall include the following:
 - (a) Old age pension;
 - (b) Gratuity;
 - (c) Lump sum payment in lieu of pension as prescribed;
 - (d) Other benefits as prescribed.

Chapter 5: Provisions Relating to Medical Treatment, Health and Maternity Protection

Section 27: Entitlement to Medical Treatment

A worker and his/her dependent family members shall be entitled to medical treatment services under the medical treatment, health and maternity protection scheme.

Section 28: Types of Medical Treatment

The medical treatment services under Section 27 shall include:

- (a) General consultation and treatment;
- (b) Specialist consultation and treatment;
- (c) Emergency treatment;
- (d) Surgical treatment;
- (e) Hospitalization;
- (f) Medicine and medical supplies;
- (g) Diagnostic and laboratory services;
- (h) Other medical services as prescribed.

Section 29: Maternity Protection

(1) A female worker shall be entitled to maternity health services under the medical treatment, health and maternity protection scheme.

(2) The maternity health services under Sub-section (1) shall include:

- (a) Antenatal care;
- (b) Delivery services;
- (c) Postnatal care;
- (d) Maternity leave benefits;
- (e) Other maternity services as prescribed.

Section 30: Designated Medical Institutions

(1) The Fund shall designate medical institutions for the provision of medical treatment services under this Act.

(2) The Fund shall enter into agreements with designated medical institutions for the provision of services.

(3) The standards and procedures for designation of medical institutions shall be as prescribed.

Chapter 6: Provisions Relating to Accident and Disability Protection

Section 31: Entitlement to Accident Benefits

A worker shall be entitled to benefits under the accident and disability protection scheme if the worker suffers an accident resulting in injury, disability, or death.

Section 32: Types of Accidents Covered

The accident and disability protection scheme shall cover the following types of accidents:

- (a) Workplace accidents occurring during the course of employment;
- (b) Accidents occurring while commuting to and from the workplace;
- (c) Occupational diseases;
- (d) Other accidents as prescribed.

Section 33: Disability Classification

For the purposes of this Act, disability shall be classified as follows:

- (a) **Total disability:** Complete loss of capacity to perform any work;
- (b) **Severe partial disability:** Loss of capacity to perform the previous work or substantial reduction in earning capacity;
- (c) **Partial disability:** Partial reduction in earning capacity.

Section 34: Benefits for Accident and Disability

The benefits under the accident and disability protection scheme shall include:

- (a) Medical treatment expenses;
- (b) Daily cash allowance during treatment period;
- (c) Disability allowance based on the degree of disability;

(d) Rehabilitation and vocational training expenses;

(e) Other benefits as prescribed.

Chapter 7: Provisions Relating to Dependent Family Protection

Section 35: Entitlement to Dependent Family Benefits

The dependent family members of a worker who dies shall be entitled to benefits under the dependent family protection scheme.

Section 36: Benefits for Dependent Family Members

The benefits under the dependent family protection scheme shall include:

- (a) Funeral expenses as prescribed;
- (b) Monthly survivor's pension to the surviving spouse;
- (c) Monthly orphan's pension to dependent children;
- (d) Educational support for dependent children;
- (e) Lump sum payment as prescribed;
- (f) Other benefits as prescribed.

Section 37: Conditions for Dependent Family Benefits

- (1) The surviving spouse shall be entitled to survivor's pension until remarriage or death.
- (2) The dependent children shall be entitled to orphan's pension until they attain the age of eighteen years or until marriage, whichever is earlier.
- (3) Notwithstanding anything contained in Sub-section (2), orphan's pension shall be provided until the completion of education if the dependent child is pursuing education.

Chapter 8: Provisions Relating to Old Age Protection

Section 38: Entitlement to Old Age Benefits

A worker who has attained the prescribed age and completed the prescribed period of contribution shall be entitled to benefits under the old age protection scheme.

Section 39: Retirement Age

- (1) The retirement age for the purposes of old age benefits shall be as prescribed.
- (2) Notwithstanding anything contained in Sub-section (1), a worker may opt for early retirement at a reduced pension rate as prescribed.

Section 40: Types of Old Age Benefits

The old age protection scheme shall provide the following benefits:

- (a) Monthly old age pension;
- (b) Lump sum payment in lieu of pension as prescribed;
- (c) Gratuity as prescribed;
- (d) Other benefits as prescribed.

Section 41: Calculation of Pension

- (1) The old age pension shall be calculated on the basis of the worker's basic remuneration and the period of contribution.
- (2) The formula for calculation of pension shall be as prescribed.

Chapter 9: Provisions Relating to Collection of Contribution

Section 42: Duty to Deposit Contribution

- (1) Every employer shall deposit the contribution in the Fund within the prescribed time limit.

(2) The employer shall be responsible for the deposit of both the employer's contribution and the worker's contribution.

Section 43: Manner of Deposit

(1) The contribution shall be deposited in the Fund in the prescribed manner.

(2) The employer shall, while depositing the contribution, provide the particulars as prescribed.

Section 44: Late Deposit

(1) Where an employer fails to deposit the contribution within the prescribed time limit, a late fee shall be charged as prescribed.

(2) The employer shall deposit the contribution along with the late fee under Sub-section (1).

Section 45: Recovery of Contribution

(1) Where an employer fails to deposit the contribution, the Fund may issue a notice to the employer for the deposit of the contribution.

(2) Where the employer fails to deposit the contribution even after the notice under Sub-section (1), the Fund may recover the contribution as arrears of land revenue.

Chapter 10: Provisions Relating to Claims and Payment of Benefits

Section 46: Application for Benefits

(1) A worker or his/her dependent family member who desires to obtain benefits under a social security scheme shall submit an application to the Fund in the prescribed format.

(2) The application under Sub-section (1) shall be accompanied by the prescribed documents.

Section 47: Inquiry and Decision

(1) The Fund shall, upon receipt of an application under Section 46, make necessary inquiry and decide on the application within the prescribed time limit.

(2) The Fund shall, while making inquiry under Sub-section (1), examine the documents submitted by the applicant and obtain additional information if necessary.

Section 48: Payment of Benefits

(1) The Fund shall, upon approval of the application under Section 47, pay the benefits to the applicant in the prescribed manner.

(2) The benefits shall be paid from the Fund.

Section 49: Time Limit for Payment

The Fund shall pay the benefits within the prescribed time limit from the date of approval of the application.

Section 50: Review of Decision

(1) A person who is not satisfied with the decision of the Fund under Section 47 may apply for review within the prescribed time limit.

(2) The Fund shall decide on the application for review under Sub-section (1) within the prescribed time limit.

Chapter 11: Provisions Relating to Exemption and Concession in Contribution

Section 51: Exemption from Contribution

(1) The Government of Nepal may, by notification in the Nepal Gazette, exempt certain categories of workers or employers from the deposit of contribution.

(2) The categories of workers or employers eligible for exemption under Sub-section (1) shall be as prescribed.

Section 52: Concession in Contribution

(1) The Government of Nepal may, by notification in the Nepal Gazette, provide concession in the rate of contribution for certain categories of workers or employers.

(2) The categories eligible for concession and the concessional rates under Sub-section (1) shall be as prescribed.

Chapter 12: Provisions Relating to Records and Information

Section 53: Maintenance of Records

(1) The Fund shall maintain updated records of employers, workers, contributions, and benefits.

(2) The records under Sub-section (1) shall be maintained in digital format as far as possible.

Section 54: Access to Records

(1) An employer shall have access to the records relating to his/her organisation or establishment maintained by the Fund.

(2) A worker shall have access to his/her personal records maintained by the Fund.

Section 55: Confidentiality

(1) The Fund and its employees shall maintain confidentiality of the personal information of workers and employers obtained in the course of performing functions under this Act.

(2) No person shall disclose any confidential information obtained under this Act except as provided by law.

Section 56: Information to be Provided by Employer

(1) Every employer shall provide the following information to the Fund:

- (a) Details of workers employed;
- (b) Changes in employment status of workers;
- (c) Details of remuneration paid to workers;
- (d) Other information as prescribed.

(2) The employer shall provide the information under Sub-section (1) within the prescribed time limit.

Chapter 13: Provisions Relating to Inspection and Inquiry

Section 57: Inspector

(1) The Fund may designate inspectors for the inspection of organisations or establishments for the implementation of this Act.

(2) The qualifications and terms of service of inspectors under Sub-section (1) shall be as prescribed.

Section 58: Powers of Inspector

An inspector shall have the following powers:

- (a) To enter and inspect an organisation or establishment at any reasonable time;
- (b) To examine records and documents relating to workers and contributions;
- (c) To obtain statements from the employer or workers;
- (d) To take copies of records and documents;
- (e) To exercise such other powers as prescribed.

Section 59: Inquiry

(1) The Fund may conduct inquiry into any matter relating to the implementation of this Act.

(2) The procedures for inquiry under Sub-section (1) shall be as prescribed.

Chapter 14: Provisions Relating to Offences and Penalties

Section 60: Offence of Non-Registration

An employer who fails to register the organisation or establishment with the Fund under Section 15 shall be punished with a fine not exceeding fifty thousand rupees.

Section 61: Offence of Non-Deposit of Contribution

(1) An employer who fails to deposit the contribution in the Fund within the prescribed time limit shall be punished with a fine not exceeding one hundred thousand rupees.

(2) Notwithstanding anything contained in Sub-section (1), the employer shall be required to deposit the contribution along with the late fee.

Section 62: Offence of Providing False Information

An employer or worker who provides false information to the Fund shall be punished with imprisonment for a term not exceeding six months or a fine not exceeding fifty thousand rupees, or both.

Section 63: Offence of Obstruction

A person who obstructs an inspector in the performance of his/her duties under this Act shall be punished with imprisonment for a term not exceeding three months or a fine not exceeding twenty-five thousand rupees, or both.

Section 64: Offence of Misuse of Benefits

A person who obtains benefits under this Act by providing false information or documents shall be punished with imprisonment for a term not exceeding one year or a fine not exceeding one hundred thousand rupees, or both.

Chapter 15: Provisions Relating to Appeal

Section 65: Appeal

(1) A person who is not satisfied with an order or decision made by the Fund under this Act may file an appeal before the appellate body within the prescribed time limit.

(2) The procedures for appeal under Sub-section (1) shall be as prescribed.

Section 66: Stay of Decision

The appellate authority may, upon an application filed by the appellant, issue an order to stay the execution of the order or decision appealed against.

Chapter 16: Miscellaneous

Section 67: Delegation of Powers

- (1) The Board may delegate any of the powers conferred on it under this Act to the Executive Director or any committee.
- (2) The Executive Director may delegate any of the powers conferred on him/her under this Act to any employee of the Fund.

Section 68: Power to Form Committees

- (1) The Board may form necessary committees for the implementation of this Act.
- (2) The functions, duties, and powers of the committee formed under Sub-section (1) shall be as prescribed.

Section 69: Coordination with Medical Institutions

- (1) The Fund shall coordinate with medical institutions for the provision of medical treatment services under this Act.
- (2) The Fund may enter into agreements with medical institutions for the provision of services at reasonable rates.

Section 70: International Coordination

The Fund may coordinate and cooperate with international organisations and foreign social security institutions for the development of the social security system.

Section 71: Public Awareness

The Fund shall conduct public awareness programmes on the contribution-based social security system.

Section 72: Annual Report

- (1) The Fund shall prepare an annual report on its activities and submit it to the Government of Nepal.
- (2) The Government of Nepal shall lay the annual report before the Federal Parliament.

Section 73: Removal of Difficulty

If any difficulty arises in connection with the implementation of this Act, the Government of Nepal may, by notification in the Nepal Gazette, issue necessary orders to remove such difficulty.

Section 74: Power to Make Rules

The Government of Nepal may make necessary rules for the implementation of this Act.

Section 75: Power to Make By-Laws

- (1) The Board may make by-laws, subject to the provisions of this Act and the rules made thereunder, for the operation of its functions.
- (2) The by-laws made under Sub-section (1) shall come into force after being approved by the Government of Nepal.

Key Metadata

Law Title (Nepali)	योगदानमा आधारित सामाजिक सुरक्षा ऐन, २०७४
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Total Sections	75 (amended versions up to 102 sections)
Total Chapters	16
Primary Regulator	Social Security Fund (SSF)
Scope	Comprehensive social security framework for workers in organised sector including medical, accident, disability, dependent family, and old age protection schemes
Contribution Rates	Employer: 20% of basic remuneration; Worker: 11% of basic remuneration

Related Legislation	Labour Act 2074, Foreign Employment Act 2064, Employees Provident Fund Act 2019
Current Status	In force; major implementation began 2075 BS (2018 AD)